

CHAPTER 25.

An Act to amend the Petroleum Acts, 1871
and 1879. [4th August 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Definition
of "petro-
leum" and
"petroleum
spirit."
34 & 35 Vict.
c. 105.

1.—(1) Section three of the Petroleum Act, 1871, shall cease to have effect, and that Act shall have effect as if the expression "petroleum spirit" were therein substituted for the expression "petroleum to which this Act applies" wherever that expression occurs.

(2) For the purposes of the Petroleum Acts, 1871 and 1879, and of this Act unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say—

"petroleum" includes crude petroleum, oil made from petroleum, or from coal, shale, peat or other bituminous substances, and other products of petroleum; and

"petroleum spirit" means such petroleum as when tested in the manner set forth in the First Schedule to this Act gives off an inflammable vapour at a temperature of less than seventy-three degrees Fahrenheit.

Amendment
as to verifi-
cation and
stamping
of testing
apparatus.

2. Apparatus for testing petroleum stamped by the Board of Trade in accordance with the provisions of section three of the Petroleum Act, 1879, shall not be deemed to have been verified by the Board unless—

(a) it has been stamped within ten years; and

(b) no part of the apparatus has been materially altered, repaired, or replaced since the apparatus was last stamped.

3. Subject as hereinafter provided, the provisions contained in the First Schedule to this Act shall have effect in lieu of the provisions contained in the First Schedule to the Petroleum Act, 1879 (which relate to the mode of testing petroleum), and references in the Petroleum Acts, 1871 and 1879, to the First Schedule to those Acts respectively shall be construed as references to the First Schedule to this Act :

Amendment
as to
method of
testing of
petroleum.

Provided that—

- (a) apparatus made in accordance with the specification contained in the First Schedule to the Petroleum Act, 1879, may be verified and stamped by the Board of Trade in accordance with the provisions of section three of that Act as originally enacted, so, however, that no such apparatus shall be so verified and stamped after the expiration of a period of two years from the commencement of this Act unless it has been previously verified and stamped before the expiration of that period; and
- (b) petroleum tested in manner provided by Part II. of the First Schedule to this Act by means of apparatus made in accordance with the specification contained in the First Schedule to the Petroleum Act, 1879, which has been verified and stamped by the Board, shall, subject to the provisions of this Act relating to the verification and stamping of apparatus, be deemed to have been tested in the manner set forth in the First Schedule to this Act.

4. Section eleven of the Petroleum Act, 1871 (which empowers an officer of the local authority to purchase petroleum from any dealer in it, to require the dealer to show him any place or vessel in which petroleum in his possession is kept and give him samples of such petroleum, and to cause any samples so taken to be tested and any petroleum which is found to be petroleum spirit to be certified as such), and section twelve of the said Act (which imposes penalties on a dealer who refuses to comply with any such requirement

Extension of
34 & 35 Vict.
c. 105,
ss. 11 & 12,
to persons
keeping
petroleum
for the
purposes of
trade or
industry.

as aforesaid or who fails to give assistance to or obstructs any such officer or the local authority), shall apply with respect to any person who keeps petroleum for the purposes of any trade or industry carried on by him, as those sections apply with respect to a dealer in petroleum, and accordingly references in each of the said sections to a "dealer" shall be construed to include references to any person who keeps petroleum for such purposes as aforesaid.

Byelaws as to the loading and carriage of petroleum spirit in ships.

5.—(1) The byelaws as to ships carrying petroleum required to be made and confirmed under section four of the Petroleum Act, 1871, shall include byelaws as to the loading of ships with petroleum spirit and generally as to the precautions to be observed with respect to ships carrying petroleum spirit whilst in harbour.

(2) Until byelaws made under the said section four as amended by this section come into force, any byelaws in force at the commencement of this Act with respect to the landing of petroleum spirit, shall, so far as applicable, apply with the necessary modifications to the loading of ships with petroleum spirit.

28 & 29 Vict.
c. 125.

(3) If it appears to the Admiralty that byelaws under the said section four ought to be made with respect to any place within the limits of a dockyard port as defined by the Dockyard Port Regulation Act, 1865, but that there is no harbour authority competent to make byelaws with respect to that place, the Admiralty may make byelaws with respect thereto, and the said section four shall apply accordingly subject to the modifications that the provisions thereof as to the submission of byelaws to the Minister of Transport and the confirmation thereof by him, and as to the publication of byelaws, shall not apply as respects any byelaws made by the Admiralty, and any byelaws so made shall come into force without confirmation and shall be published in such manner as the Admiralty think proper.

(4) In the event of a failure to comply with or of a contravention of the requirements of any byelaw in force under the said section four as amended by this section, the owner and master of any ship in or in relation to which the failure or contravention occurs, and, except in the case of a failure or contravention in

respect of the mooring of a ship, the owner of any petroleum spirit in respect of which the failure or contravention occurs, shall be guilty of an offence under this section and shall in respect of each such offence, be liable, on summary conviction, to a fine not exceeding fifty pounds, or, in the case of a continuing offence, not exceeding fifty pounds for every day on which the offence is committed or continued:

Provided that it shall be a good defence to proceedings for an offence under this section to prove—

- (a) if the proceedings are against the owner or master of a ship for an offence in respect of the landing or loading of petroleum spirit, that all reasonable means were taken by the master to prevent the commission of the offence, and that the offence was not caused or facilitated by any act or neglect on the part of the owner or of any person engaged or employed by the owner or master; and
- (b) if the proceedings are against the owner of petroleum spirit for an offence in respect of the landing or loading thereof, or in respect of any failure to observe precautions required to be observed with respect to ships carrying petroleum spirit whilst in harbour, that the offence was not caused or facilitated by any act or neglect on his part or on the part of any person engaged or employed by him.

(5) If it appears to a harbour master or to any person acting under the orders of a harbour authority that any ship or any petroleum spirit is in a place in which it ought not, in accordance with any such byelaws as aforesaid to be, he may cause it to be removed so as to be in conformity with the byelaws, and all expenses incurred by the harbour authority in connection with any such removal may be recovered summarily as a civil debt from the owner of the ship or of the petroleum spirit, as the case may be.

6.—(1) Any person who keeps, sends, conveys, sells or exposes for sale any petroleum spirit in contravention of section six of the Petroleum Act, 1871, shall for each offence be liable on summary conviction to a fine not exceeding five pounds.

Penalties
for contra-
vention of
34 & 35 Vict.
c. 105. ss. 6
and 7.

(2) The occupier of any premises in which petroleum spirit is kept in contravention of section seven of the Petroleum Act, 1871, shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the contravention continues.

(3) A court before whom any person is convicted in respect of a contravention of the provisions of section six or seven of the Petroleum Act, 1871, may order that the petroleum spirit in respect of which the offence was committed and any vessel in which it is contained be forfeited or otherwise dealt with in such manner as they think fit.

Provisions
as to
conditions
attached to
licences.

7.—(1) If any person to whom a licence is granted under the Petroleum Act, 1871, contravenes any condition of the licence he shall be liable on summary conviction to a fine not exceeding twenty pounds for each day on which the contravention continues.

(2) Where conditions to be observed by persons employed are attached to any licence granted under the Petroleum Act, 1871, the occupier of the premises to which the licence relates shall cause to be kept posted on the premises in such form and in such position as to be easily read by the persons employed on the premises a notice setting out those conditions, and—

- (a) if the occupier of any premises fails to comply with the foregoing requirements of this subsection he shall be liable on summary conviction to a fine not exceeding five pounds for each day on which the failure continues; and
- (b) if any person pulls down, injures or defaces any notice posted in accordance with the requirements of this subsection he shall for each offence be liable on summary conviction to a fine not exceeding five pounds; and
- (c) if any person employed contravenes any condition of which notice has been given in accordance with the requirements of this subsection he shall for each offence be liable on summary conviction to a fine not exceeding five pounds.

Fees
payable for
licences.

8. In respect of every licence granted by a local authority under section seven or by a Secretary of State under section ten of the Petroleum Act, 1871, fees shall

be payable annually by the person to whom the licence is granted to the local authority or to the Secretary of State, as the case may be, in accordance with the scale set out in the Second Schedule to this Act, or such lower scale as the Secretary of State may with the consent of the Treasury prescribe by regulations.

9. The provisions of the Explosives Act, 1875, set out in the Third Schedule to this Act with the modifications necessary for their application to petroleum spirit, are as so set out hereby incorporated with this Act.

Application
of certain
provisions
of 38 Vict.
c. 17.

10. All byelaws made by the Admiralty under this Act and all regulations made by the Secretary of State as to the conveyance of petroleum spirit by road shall be laid before each House of Parliament as soon as may be after they are made, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent forty days on which that House has sat next after any such byelaw or regulation is laid before it, praying that the byelaw or regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or to the making of any new byelaw or regulation.

Byelaws
and regula-
tions to be
laid before
Parliament.

11.—(1) This Act may be cited as the Petroleum Act, 1926, and the Petroleum Acts, 1871 and 1879, and this Act may be cited together as the Petroleum Acts, 1871 to 1926.

Short title,
citation,
construc-
tion, extent
and repeal.

(2) Except where the context otherwise requires, references in this Act to the Petroleum Act, 1871, and the Petroleum Act, 1879, shall be construed as references to those Acts as amended by this Act, and this Act shall be construed as one with those Acts.

(3) This Act shall not extend to Northern Ireland.

(4) The enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

Section 3.

FIRST SCHEDULE.

TEST APPARATUS TO BE USED AND MODE OF TESTING
PETROLEUM THEREWITH SO AS TO ASCERTAIN THE
TEMPERATURE AT WHICH IT WILL GIVE OFF IN-
FLAMMABLE VAPOUR.

PART I.

SPECIFICATION OF THE TEST APPARATUS.

General.

The apparatus to be employed shall be the Abel Petroleum Testing Apparatus or the Abel apparatus modified by having an oil cup provided with a stirrer. It shall be constructed to the dimensions herein specified within the limits of accuracy prescribed by the tolerances set forth below.

The Oil Cup.

The oil cup consists of a cylindrical vessel open at the top and fitted on the outside with a flat circular flange projecting at right angles.

Within the cup, fixed through the wall and silver soldered or brazed in place, there is a gauge consisting of a piece of wire bent upwards and terminating in a point.

Material. Brass or Gun-metal.

	Dimension.	Tolerance.
Cup, wall and bottom thickness - - -	17 B.W.G.	—
„ internal diameter - - - -	2"	±0·05"
„ internal depth - - - -	2·2"	±0·05"
Flange, thickness - - - -	17 B.W.G.	—
„ width - - - -	0·5"	±0·05"
„ distance of upper side from top edge of cup.	0·375"	±0·05"
Gauge, thickness, not less than - - -	10 I.W.G.	—
„ distance of point from level of upper edge of cup.	0·7"	±0·005"

The Cover.

1ST SCH.
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The cup is provided with a close-fitting cover with a downward projecting rim barely reaching the flange on the cup. The downward projecting rim is made solid with the top or silver soldered or brazed in place. Upon the cover are mounted a thermometer socket, trunnions to support an oil-test lamp, a pair of guides in which a slide moves, and a white bead. The top of the cover is pierced by three rectangular holes symmetrically placed on a diameter, one in the centre and the other two as close as practicable to the inner sides of the cover-rim and opposite each other. These three holes are covered or uncovered by means of a slide moving in suitably disposed guides. The slide has two perforations, one corresponding in all particulars to the centre hole in the cover and the other to one of the holes at the side. The movement of the slide is restricted by suitable stops, and its length and the disposition of the holes are such, that at the outer extremity of the movement of the slide, the holes in the cover are simultaneously just completely opened and at the inner extremity of the movement of the slide they are completely closed.

The trunnions supporting the test lamp are fixed on the top of the guides and the lamp is mounted in the trunnions so that it is free to oscillate. The lamp is provided with a jet to contain a wick and is so arranged that when the slide is moved so as to uncover the holes, the oscillating lamp is caught by a pin fixed in the slide and tilted over the central hole in such a way that the lower edge of the cover bisects the circle formed by the bore of the jet when in the lowest position. The flame then occupies a central position within the hole in both directions.

A suitably mounted gas-jet may be substituted for the lamp.

The thermometer socket is in the form of a split tube, mounted on a diameter at right angles to the diameter through the centres of the holes, and fitted at such an angle as to bring the bulb of the thermometer, when in place, vertically below the centre of the cover and at the correct distance from it.

A white bead, the dimensions of which represent the size of test flame to be used, is mounted in a visible position on the cover.

Materials. All parts excepting bead, brass or gun-metal.

Bead, ivory or other suitable material.

—	Dimension.	Tolerance.
Cover, thickness - - - -	0·05"	+0·015"
„ central hole, length (in direction of slide).	0·5"	±0·005"
„ width	0·4"	±0·005"
„ peripheral holes length (in direction of slide).	0·2"	±0·005"
„ width	0·3"	±0·005"

1st Sch.
—cont.

	Dimension.	Tolerance.
Slide, thickness - - - -	20 B.W.G.	—
„ width of upper surface -	0·5"	+0·01"
		(excess only).
Lamp. Overall length of jet -	Approx. 0·6"	To suit the require- ments for the position of jet when tilted.
„ Bore of jet at end - -	0·0625"	±0·005"
Bead. Diameter - - - -	0·15"	±0·01"
Thermometer Socket :		
Internal diameter - - -	0·6"	±0·01"
Length of short side measured from under surface of cover.	Approx. 0·5"	—
Length of long side measured from under surface of cover.	Approx. 0·75"	—
Distance of centre of socket from centre of cover meas- ured on the underside.	Approx. 0·7"	
These dimensions are subject to the correct placing of the thermometer when in position.		
Vertical depth of lowest part of thermometer below centre of under-side of cover.	1·5"	±0·1"

Cover fitted with stirrer.

Provision may be made in the cover for the reception of a stirrer which projects into the oil cup, for use with viscous materials only.

A bush is mounted on the cover in a position diametrically opposite the thermometer mounting and its length is such and it is set at such an angle that the stirrer rod clears the oil-level gauge and the blades operate below the level of and without fouling the thermometer bulb. The bush is placed as near as practicable to the outer edge of the cover.

The stirrer consists of a round stem having four blades or vanes silver soldered in place at one end. A collar is fixed on the stem so that when the stem is inserted into the bush from below, it is arrested at a position such that the correct length protrudes into the oil cup. The top end of the stem is reduced and screwed.

A long sleeve having an internally screwed, knurled knob soldered to its upper end, is passed over the upper end of the stem and screwed home. The length of the sleeve is such that a flat-faced collar at its lower end just comes into contact with the upper end of the bush, leaving the stirrer free to rotate without appreciable vertical play.

A flat-headed cylindrical plug is provided for insertion in the bush when the stirrer is not in use.

1st Sch.
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Material. Brass or Gun-metal.

	Dimension.	Tolerance.
Stem, length overall - - - - -	4"	$\pm 0.1"$
" " Lower end to point of attachment of blades.	Approx. 0.1"	—
" " Lower end to upper surface of collar.	1.9"	$\pm 0.1"$
" " Upper surface of collar to lower end of thread.	2"	$\pm 0.1"$
" " Diameter of stem - - - - -	Approx. 0.125"	—
" " " of collar - - - - -	Approx. 0.25"	—
" Thread - - - - -	7 B.A.	—
Blades, Thickness - - - - -	17 B.W.G.	—
" Length excluding root - - - - -	0.5"	$\pm 0.01"$
" Breadth (all corners of blades rounded).	$\frac{5}{16}"$ (0.3125").	$\pm 0.01"$
" Blade angle - - - - -	Approx. 45°	—
Sleeve. Length, to suit stem; giving free rotation with no appreciable vertical play when screwed home.	—	—
Diameter of bore - - - - -	Sliding fit on stem.	—
Diameter of collar - - - - -	Approx. 0.25"	—

Heating Vessel.

The heating vessel or bath consists of two flat-bottomed cylindrical copper vessels placed coaxially one inside the other and soldered at their tops to a flat copper ring, greater in outside diameter than the larger vessel and of smaller inside diameter than the smaller vessel. The space between the two vessels is thus totally enclosed and is used as a water jacket.

An ebonite or fibre ring of right-angle section is fitted into the hole in the centre of the flat ring forming the top of the bath and, when the apparatus is in use, the oil cup fits into, and its flange rests upon, this ebonite or fibre ring so that the oil cup is centrally disposed within the heating vessel. The ebonite or fibre ring is secured in place by means of six small screws having their heads sunk below the surface of the ring, to avoid metallic contact between the bath and the oil cup.

A split socket, similar to that on the cover of the oil cup, but set vertically, allows a thermometer to be inserted into the water-space. A funnel and overflow pipe also communicate with

1st Sch.
—cont.

the water-space through the top plate and two loop handles are provided thereon.

—	Dimension.	Tolerance.
Inner vessel :		
Thickness - - - -	24 B.W.G.	—
Internal diameter - - -	3"	$\pm 0.05"$
Internal depth - - - -	2.5"	$\pm 0.05"$
Outer vessel :		
Thickness, not less than - -	24 B.W.G.	—
Internal diameter - - - -	5.5"	$\pm 0.1"$
Internal depth - - - -	5.75"	$\pm 0.1"$
Top plate :		
Thickness, not less than - -	20 B.W.G.	—
Outer flange projection - -	0.375"	$\pm 0.1"$
Diameter of central hole - -	To suit ebonite or fibre ring. Clearance not to exceed 0.1".	—
Ebonite or fibre ring :		
Internal diameter - - - -	Easy fit on oil cup	—
External diameter of flange -	2.75"	$\pm 0.02"$
Overall depth of spigot - -	0.25"	$\pm 0.02"$
Thickness, flange and spigot -	0.08"	$\pm 0.005"$
Screws, C.S. - - - -	8 B.A. $\times$ 0.15"	—
Thermometer socket :		
Internal diameter - - - -	0.6"	$\pm 0.01"$
Height from top of plate - -	0.75"	$\pm 0.05"$

The bath rests upon a cast-iron tripod stand, to the ring of which is attached a cylindrical copper jacket not less than 24 B.W.G. flanged inwards at the top, and of such dimensions that the bath, while resting firmly on the iron ring, just touches with its outward projecting flange the inward-turned flange of the jacket. Two handles are provided on the outer jacket.

Diameter of the outer jacket 6.5 inches $\pm$ 0.1 inches.

Spirit Lamp.

A spirit lamp is provided for raising the temperature of the water bath, but any other means approved by the Board of Trade may be employed for this purpose.

Thermometers.

Two thermometers are provided with the apparatus, the one for ascertaining the temperature of the bath, the other for determining the flashing point.

*Oil Cup Thermometer.*1st Sch.
—cont.

- Type - - Mercury in glass, nitrogen filled, graduated on the stem, enamel back.
- Length - - Approximately 9 inches.
- Stem - - Diameter 0·24 inches to 0·28 inches.
- Bulb - - Spherical: made of a normal glass approved by the Board of Trade.
Diameter, 0·35 inches $\pm$ 0·05 inches.
- Range - - 50° F. to 150° F. with expansion chamber.
, Distance from the bottom of the bulb to the 50° line 2·75 inches to 3·15 inches. Distance from the 50° line to the 150° line not less than 4·75 inches.
- Immersion - A swelling is made in the stem to ensure that the thermometer shall be fixed in its brass collar so that the distance from the top of the collar to the bottom of the bulb is 2·25 inches $\pm$ 0·05 inches.
- Graduation - Scale graduated in 1° F. divisions. Every 5° and 10° to be indicated by longer lines. Figured at every 10° in full.
- Marking - “ Abel Oil Cup ”: Identification number: “ Fahrenheit ”: Maker’s or Vendor’s name or trade mark.

Water Bath Thermometer.

- Type - - Mercury in glass, nitrogen filled, graduated on the stem, enamel back.
- Length - - Approximately 9 inches.
- Stem - - Diameter, 0·24 inches to 0·28 inches.
- Bulb - - Cylindrical: made of a normal glass approved by the Board of Trade. Length approximately 0·8 inches. Diameter not to exceed the diameter of the stem.
- Range - - 90° F. to 190° F. with expansion chamber. Distance from the bottom of the bulb to the 90° line 3·95 inches to 4·35 inches. Distance from the 90° line to the 190° line not less than 3·55 inches.
- Immersion - A swelling is made in the stem to ensure that the thermometer shall be fixed in its brass collar so that the distance from the top of the collar to the bottom of the bulb is 3·5 inches $\pm$ 0·1 inches.

- 1st Sch. Graduation - Scale graduated in 1° F. divisions. Every 5° and
—cont. 10° to be indicated by longer lines. Figured at
 every 10° in full.
- Marking - “Abel Water Bath”: Identification number:
 “Fahrenheit”: Maker’s or Vendor’s name or
 trade mark.

The brass collar of the thermometer is in each case of the following dimensions:—

- Outside diameter - push fit in socket.
Thickness of tube - 22 B.W.G.
Thickness of flange - 0·1 inches. $\pm$ 0·001 inches.

Note.—A model apparatus is deposited at the Standards Department of the Board of Trade.

PART II.

Method of applying the Flashing Test.

1. The test apparatus shall be placed for use in a position where it is not exposed to currents of air or draughts.

2. The heating vessel or water-bath shall be filled by pouring water into the funnel until it begins to flow out at the spout of the vessel. The temperature of the water at the beginning of the test shall be 130° Fahrenheit and no heat shall be applied to the water-bath during the test. When a test has been completed and it is desired to make another test the water-bath shall be again raised to 130° F. which may conveniently be done while the petroleum cup is being emptied, cooled and refilled with a fresh sample to be tested. The next test is then proceeded with.

3. If an oil test-lamp is being used it shall be prepared by fitting it with a piece of flat plaited candle-wick, and filling it with colza or rape-oil up to the lower edge of the opening of the spout or wick tube. The lamp shall be trimmed so that when lighted it gives a flame of about 0·15 of an inch diameter, and this size of flame, which is represented by the projecting white bead on the cover of the oil-cup is readily maintained by simple manipulation from time to time with a small wire trimmer. A gas test-lamp may be employed, and if so, the size of the jet of flame shall be adjusted to the size laid down above.

4. The bath having been raised to the proper temperature, the cup shall be placed on a level surface in a good light and the oil to be tested shall be poured into it, until the level of the liquid just reaches the point of the gauge which is fixed in the cup. Before a test is begun the temperature of the oil shall be

determined and shall be brought to approximately 60° F. The cover, with the slide closed, shall then be put on to the cup and pressed down so that its edge rests on the rim of the cup, and the cup shall be placed into the bath or heating vessel, every care being taken to avoid wetting the sides of the cup with the oil. The thermometer in the lid of the cup has been adjusted so as to have the correct immersion when the brass collar of the thermometer is properly seated, and its position shall not in any circumstances be altered. When the cup has been placed in the proper position, the scale of the thermometer faces the operator.

5. The test-lamp shall then be placed in position upon the lid of the cup. When the temperature has reached 66° F. the operation of testing shall be begun, the test flame being applied once for every rise of one degree, in the following manner :—

The slide shall be slowly drawn open while a metronome, set at 75 to 80 beats per minute, beats three times and shall be closed during the fourth beat. A pendulum of 24 inches effective length may be used in place of the metronome, counting one beat from one extremity of the swing to the other.

SECOND SCHEDULE.

Section 8.

FEES PAYABLE IN RESPECT OF LICENCES TO KEEP PETROLEUM SPIRIT.

In respect of a licence to keep a quantity :—	Fee payable.		
	£	s.	d.
Not exceeding 100 gallons - - - - -	0	5	0
Exceeding 100 gallons, not exceeding 500 gallons -	0	10	0
" 500 " " " 1,000 "	-	0	15 0
" 1,000 " " " 5,000 "	-	1	0 0
" 5,000 " " " 10,000 "	-	2	0 0
" 10,000 " " " 20,000 "	-	3	0 0
" 20,000 " " " 50,000 "	-	4	0 0
Exceeding 50,000 gallons - - - - -	-	5	0 0

Note.—In the case of a solid substance for which by virtue of an Order in Council made under section fourteen of the Petroleum Act, 1871, a licence is required to be granted under the said Act, the fee payable under this Schedule shall be calculated as if ten pounds weight of the substance were equivalent to one gallon.

1ST SCH.
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Section 9.

THIRD SCHEDULE.

PROVISIONS OF EXPLOSIVES ACT, 1875, INCORPORATED
WITH MODIFICATIONS.

Regulations
as to convey-
ance by road
(Explosives
Act, 1875,
s. 37.)

1. The Secretary of State may make regulations as to the conveyance of petroleum spirit by road, and in particular for declaring or regulating any of the following matters; that is to say,—

- (1) Regulating the description and construction of carriages to be used in the conveyance by road of petroleum spirit; and
- (2) Prohibiting or subjecting to conditions and restrictions the conveyance by road of petroleum spirit with any explosive, or with any articles or substances, or in passenger carriages; and
- (3) Fixing the quantity of petroleum spirit which may be conveyed at one time or in one carriage; and
- (4) Determining the precautions to be observed in conveying petroleum spirit by road, and in loading and unloading the carriages used in the conveyance thereof, and the time during which the petroleum spirit may be kept during such conveyance, loading and unloading as aforesaid; and
- (5) Providing for the publication and supply of copies of the regulations; and
- (6) Generally for protecting, whether by means similar to those above mentioned or not, persons or property from danger; and
- (7) Adapting on good cause being shown the regulations in force under this section to the circumstances of any particular locality; and
- (8) Providing for the enforcement of the regulations in any district by the local authority having power in that district to grant licences to keep petroleum spirit.

The penalties to be annexed to any breach, or attempt to commit any breach, of any regulations made under this section shall be recovered in manner directed by the Summary Jurisdiction Acts and may be all or any of the following penalties, and may be imposed on such persons and graduated in such manner as may be deemed just, according to the gravity of the offence, and according as it may be a first, second or other subsequent offence, that is to say, pecuniary penalties not exceeding twenty pounds for each offence, and ten pounds for each day during which the breach continues, and forfeiture of all or any part of the petroleum spirit in respect of which, or being in the carriage in respect of which, the breach of regulation has taken place.

2. Whenever any accident which occasions loss of life or personal injury occurs by explosion or by fire in or about or in connection with any licensed premises, the occupier of the premises shall if the explosion or fire involved petroleum spirit forthwith send or cause to be sent to the Secretary of State notice of the accident and of the loss of life or personal injury. A notice of any accident of which notice is sent in pursuance of this section need not be sent to any inspector of factories.

3RD SCH.
—cont.
Notice to be
given of
accidents.
(Explosives
Act, 1875,
s. 63.)

Where, in, about, or in connexion with any carriage, ship, or boat either conveying petroleum spirit, or on or from which petroleum spirit is being loaded or unloaded, any accident which occasions loss of life or personal injury occurs by explosion or by fire, the owner or master of the carriage, ship or boat shall if the explosion or fire involved petroleum spirit forthwith send or cause to be sent to the Secretary of State notice of the accident and of the loss of life or personal injury, but this provision shall not apply where the petroleum spirit carried or loaded on, or unloaded from, the carriage, ship or boat is or was for use only on that carriage, ship or boat or in any case in which such notice as aforesaid is by law required to be sent to some other Government department.

Every such occupier, owner, or master as aforesaid who fails to comply with this section shall be liable on summary conviction to a fine not exceeding twenty pounds.

3. The Secretary of State may direct an inquiry to be made by a Government inspector into the cause of any accident of which notice is required by this Act to be given to the Secretary of State, and where it appears to the Secretary of State either before or after the commencement of any such inquiry, that a more formal investigation of the accident, and of the causes and circumstances thereof, is expedient, the Secretary of State may by order direct a formal investigation to be held, and with respect to inquiries and investigations made or held under this Act the following provisions shall have effect :—

Inquiry into
accidents
and formal
investigation
of any serious
case.
(Explosives
Act, 1875,
s. 66.)

- (1) The Secretary of State may, by the same or any subsequent order, appoint any person or persons possessing legal or special knowledge to assist the Government inspector in holding a formal investigation, or may direct the county court judge, stipendiary magistrate, metropolitan police magistrate, or other person or persons named in the order, to hold such an investigation with the assistance of a Government inspector or any other assessor or assessors named in the order :
- (2) The persons holding any formal investigation (in this section referred to as the court) shall hold it in open court in such manner and under such conditions as they

3RD SCH.
—cont.

may think most effectual for ascertaining the causes and circumstances of the accident, and for enabling them to make the report in this section mentioned :

- (3) The court shall have for the purpose of the investigation all the powers of a court of summary jurisdiction when acting as a court in hearing informations for offences against this Act, and shall have all the powers of a Government inspector under this Act, and in addition the following powers, namely—

(a) They may enter and inspect any place or building the entry or inspection whereof appears to them requisite for the said purpose ;

(b) They may by summons under their hands require the attendance of all such persons as they think fit to call before them and examine for the said purpose, and may for the said purpose require to be furnished to them answers or returns to such inquiries as they think fit to make ;

(c) They may require the production of all books, papers, and documents which they consider important for the said purpose ;

(d) They may administer an oath, and require any person examined to make and sign a declaration of the truth of the statements made by him in his examination :

- (4) Persons attending as witnesses before the court shall be allowed such expenses as would be allowed to witnesses attending before a court of record ; and in case of dispute as to the amount to be allowed, the dispute shall be referred by the court to a master of one of the superior courts, who, on request under the hands of the members of the court, shall ascertain and certify the proper amount of the expenses :
- (5) Any person who without reasonable excuse (proof whereof shall lie on him) either fails, after having had the expenses (if any) to which he is entitled tendered to him, to comply with any summons or requisition of a court holding an investigation under this Act, or prevents or impedes the court in the execution of their duty, shall for every such offence incur a penalty not exceeding ten pounds, and in the case of a failure to comply with a requisition for furnishing any return or producing any document, not exceeding ten pounds during every day that the failure continues :

- (6) The Government inspector making an inquiry into any accident and the court holding an investigation of any accident under this section shall make a report to the Secretary of State, stating the causes of the accident and all the circumstances attending it, and any observations thereon or on the evidence or on any matters arising out of the inquiry or investigation which he or they think right to make to the Secretary of State, and the Secretary of State shall cause every report so made to him to be made public in such manner as he thinks expedient.

3RD SCH.
—*cont.*

4. A Government inspector shall have power to make such examination and inquiry as may be necessary to ascertain whether this Act is complied with, and for that purpose,—

Powers of
inspectors.
(Explosives
Act, 1875,
s. 55.)

- (1) he may enter, inspect, and examine at all reasonable times by day any licensed premises, and every part thereof, and any premises in which any petroleum spirit is kept, or is suspected by him to be kept in contravention of this Act; and
- (2) he may require the occupier of any premises which he is so entitled to enter, or a person employed therein by the occupier, to give him samples of any petroleum on the premises.

The occupier of any such premises as aforesaid, his agents and servants, shall furnish the means required by an inspector as necessary for every such entry, inspection and examination which he is entitled under this section to make.

Any person who fails to permit an inspector to enter, inspect or examine as aforesaid, or to comply with any such requisition of an inspector as aforesaid, or who in any manner obstructs an inspector in the execution of his duties, shall be liable, on summary conviction, to a fine not exceeding one hundred pounds.

5.—(1) Where a coroner holds an inquest upon the body of any person whose death may have been caused by any accident of which notice is required by this Act to be given to the Secretary of State, the coroner shall adjourn the inquest unless a Government inspector, or some person on behalf of the Secretary of State, is present to watch the proceedings:

Provisions as
to coroners'
inquests on
deaths from
accidents
connected
with petro-
leum spirit.
(Explosives
Act, 1875,
s. 65.)

Provided that if the accident has not occasioned the death of more than one person, and the coroner has sent to the Secretary of State notice of the time and place of holding the inquest not less than forty-eight hours before the time of the holding thereof, it shall not be imperative on him to adjourn the inquest in pursuance of this section if the majority of the jury think it unnecessary that he should do so.

3RD SCH.
—cont.

(2) The coroner before the adjournment, may take evidence to identify the body, and may order the interment thereof.

(3) The coroner at least four days before holding the adjourned inquest, shall send to the Secretary of State notice in writing of the time and place of holding the adjourned inquest.

(4) An inspector or person employed on behalf of the Secretary of State shall be at liberty at any such inquest as aforesaid to examine any witness, subject nevertheless to the order of the coroner on points of law.

(5) Where evidence is given at an inquest 'at which no inspector or person employed on behalf of the Secretary of State is present, of any neglect as having caused or contributed to the accident, or of any defect in or about or in connection with any licensed premises, or any carriage, ship or boat carrying petroleum spirit, appearing to the coroner or jury to require a remedy, the coroner shall send to the Secretary of State notice in writing of the neglect or defect.

Interpreta-
tion.

6. In this Schedule—

The expression "licensed premises" means any premises in respect of which a licence is in force under the Petroleum Act, 1871; and

The expression "Government inspector" means a Government inspector under the Explosives Act, 1875.

Application
to Scotland.

7. In the application of this Schedule to Scotland—

The expression "a master of one of the superior courts" means the auditor of the Court of Session;

The expression "attending before a court of record" means attending on citation the High Court of Justiciary;

The expressions "stipendiary magistrate" and "court of summary jurisdiction" mean the sheriff; and

The expression "information" means complaint.

FOURTH SCHEDULE.

Section 11.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
34 & 35 Vict. c. 105.	The Petroleum Act, 1871	Section three, the last paragraph of section four, the last paragraph of section six, the second paragraph of section seven, in section nine the words "the mode of carrying such petroleum within the district of the licensing authority" and the third paragraph.
42 & 43 Vict. c. 47.	The Petroleum Act, 1879	Section two.
44 & 45 Vict. c. 67.	The Petroleum (Hawkers) Act, 1881.	The whole Act.

CHAPTER 26.

An Act to protect the names, uniforms, and badges of associations incorporated by Royal Charter.
[4th August 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) His Majesty may from time to time, by Order in Council made on the application of any association incorporated by Royal charter not being an association representative of any profession or business, protect—

Protection of name, uniform, &c. of chartered associations.

- (a) the name of the association; and
- (b) any special name or designation specified in the Order and used by the association for the